

**SYNTHETIC TRAINING RECORD — FICTIONAL PARTIES, PEOPLE,
AGENCIES, SYSTEMS, IDENTIFIERS, AND EVENTS — NOT A REAL
FILING OR CYBERSECURITY GUIDE COUNTERFACTUAL
APPELLATE BRANCH — NEVER FILED OR ENTERED ON THE
ACTUAL DOCKET — ISOLATED DOCKET: SYN-CA4-26-CV-4106-CF-
NEVER-OCCURRED**

Never-Filed Sealed Counterfactual Reply Brief

Court: United States Court of Appeals for the Fourth Circuit **Case:** Open Grid Archive v. United States Department of Energy **Isolated docket:** SYN-CA4-26-CV-4106-CF-NEVER-OCCURRED **Filed:** April 20, 2026

Open Grid replies in the controlled view to clarify that a corrected evidentiary record does not displace judicial evaluation. DOE has supplied functional categories and a contextual review. The Court must still ensure that the functions match the retained segments and that judicial closure goes no further than its findings.

Condition-Aster, Sequence-Beryl, Value-Cinder, Role-Dovetail, Safety-Echo, and Channel-Fable are inert training words. They show where DOE places its categories but contain no predicate, ordering, measure, identity, safeguard, destination, or response direction. The public brief presents the same legal subjects without them.

Open Grid accepts law-enforcement purpose and does not demand any authentic value. It seeks a disposition precise enough to preserve nonexempt administration and public judicial reasoning. The agency's burden remains despite the improved premise.

The controlled view is available only within the authorized session. Its removal leaves stable public references intact, and it never becomes part of the actual appeal.

Implementation Detail and Ordinary Administration

DOE's best 7(E) case concerns an authentic relation between Condition-Aster and Sequence-Beryl. If that relation embodies how a nonpublic procedure operates, *Grey* permits withholding. Value-Cinder may qualify as a guideline when the agency supports the required circumvention inference.

The Court should not extend that conclusion to every word sharing a page. A statement naming the document owner, confirming approval, preserving a prior version, or recording quality review can remain useful without revealing any controlled category. Even location is informative only when the agency explains the implementation relation it exposes.

The corrected worksheet makes those distinctions possible. It marks function and explains retention. The judge should compare that entry to the visible structure and the meaningless-token placement, not assume that the presence of a token proves the characterization.

Open Grid therefore accepts protection of genuine predicates, ordering, implementation connections, and qualifying guideline values. It asks the opinion to limit affirmance to those subjects. Clear limits prevent a proper 7(E) holding from becoming authority for withholding neutral administration within an operational record.

Human-Safety Categories and Causal Fit

The assumed 7(F) account ties Role-Dovetail to a protective assignment, Channel-Fable to a communication category, Safety-Echo to a safeguard reference, and a human-linked Value-Cinder to escalation placement. It says authentic disclosure could focus interference, facilitate misdirection, identify a safeguard, or reveal when protective participation matters.

That is a cognizable showing without a named threatened person. Its strength depends on the worksheet's correlation. A caption introducing Role-Dovetail may remain public if it identifies no assignment. General coordination surrounding Channel-Fable need not reveal a route. A statement that review occurred can be detached from Safety-Echo.

Overlap must be separately explained. When Sequence-Beryl and Role-Dovetail share a segment, the implementation rationale and physical-safety rationale should each satisfy its own standard. One valid exemption may support retention, but it does not prove the other.

The controlled labels reveal none of the predicted information and have no operational order. They allow the Court to see the asserted field boundary. Open Grid requests limited affirmance only where the corrected functional and causal account corresponds to that boundary.

Passage-Specific Sealing and Session Control

The corrected sealing approach is defensible because it begins with findings rather than access technology. The court identifies the applicable right, provides notice, evaluates each controlled counterpart, explains the interest attached to the authentic field, considers alternatives, and fixes an endpoint thirty days after mandate.

Public versions preserve all authorities, chronology, procedural positions, and relief. Only dummy-label passages occupy the controlled copies. A session grant must specify the disclosure, viewer, and exact resolved closure. Each open checks path, size, digest, readability, and logical pages before leasing a snapshot.

Revocation removes the controlled row and returns the stable subject to public resolution. Eligibility on the certificate does not create a grant, and authorization for this reply does not open another brief. These limits reject durable account-wide access.

The Court should make clear that the procedure cannot protect unrelated text. Closure of authentic Sequence-Beryl or Channel-Fable content does not conceal surrounding legal reasoning. The public counterpart's independent wording must remain adequate to explain the adjudication. With that constraint, the hypothetical sealing order is a narrow alternative rather than a broad presumption.

Specificity Is a Question of Substance

The corrected index contains the components a Vaughn presentation should have: source identification, segment correlation, functional description, exemption designation, overlap notation, and a predicted harm. The supporting declarations explain reviewer knowledge and method.

Those components allow challenge. Open Grid can ask whether Condition-Aster truly represents a predicate, whether Sequence-Beryl communicates implementation rather than editorial order, whether Value-Cinder is a guideline, and whether the human-function labels carry the stated protective role. That opportunity is meaningful only if the descriptions correspond to the source.

The Court should articulate the correlations it accepts. A generic statement that the index is detailed would not show why a disputed heading or administrative sentence was retained. Safe specificity does not require disclosure of a value; it requires description of function and context.

The controlled labels help visualize the claimed boundary while remaining incapable of revealing a real fact. They are an aid to review, not a substitute for the public explanation or sworn evidence. A reasoned ruling can sustain the adequate entries and narrow any that remain conclusory.

Completion of the Segregability Duty

The re-review generated eleven replacement images and seventeen new passages. The distribution—six images with two releases and five with one—matches the preserved production accounting. Released matter covers ownership, headings, revision, approval, recordkeeping, broad coordination, and closure.

Reviewers say remaining fragments either expose Condition-Aster, Sequence-Beryl, Value-Cinder, or a limited human-function field, or lack independent meaning. For the three records withheld in full, the worksheet records a separate judgment about each proposed administrative fragment and its positional effect.

Open Grid agrees that this is affirmative evidence. The Court must verify the result, particularly where a title block or revision statement is said to reveal an integrated relation. If the explanation matches the record, no further release is required. If an overlooked passage stands alone, FOIA requires its disclosure despite the thoroughness of the rest.

This approach keeps segregation analytically distinct from exemption. A protected Sequence-Beryl relation can remain closed while a neighboring ownership sentence becomes public. The opinion should preserve that distinction even if it ultimately affirms the corrected finding.

Form of the Counterfactual Judgment

The branch should not produce a vague mandate. Any affirmance ought to identify the protected operational-decision-tree relations, the four limited 7(F) functions, the completed segregability review, and the particularized sealing arrangement. That language is the safeguard against overreading.

If a segment falls outside the corrected categories, the Court can narrow the judgment without disturbing supported withholding. If all entries match, it can affirm without remand. The same issue-specific method applies to sealing: each closed passage stands or falls on its own finding and public counterpart.

Open Grid's requested precision does not seek another search, a real name, a technical value, or a second district judgment. It seeks fidelity to the corrected premise. The training value lies in showing how changed facts alter discrete outcomes while jurisdiction and history remain fixed.

No judgment here affects the actual docket. Stable references in this isolated branch resolve only within its closure, and the controlled view disappears when authorization ends. The opinion should repeat those limitations in its disposition.

Controlled Conclusion

DOE has presented a substantially improved account. Open Grid accepts protection for authentic implementation relations and recognizes that limited human-safety fields may satisfy 7(F). It also recognizes that the documented line review and corrected sealing procedure may support affirmance.

The Court should condition any affirmance on actual correspondence between function, harm, segment, and finding. Administrative text remains public; dual exemptions require dual explanations; and technical access controls enforce but do not justify closure.

All six labels in this reply are fictional and content-free. The controlled and public copies have eight corresponding subjects but different prose. A public viewer can understand the complete legal position without knowing the controlled asset exists or where it is stored.

Tamsin Roe certifies service within the isolated system on April 20, 2026. The reply is a never-filed training source, does not disclose a cyber-response method, and creates no actual docket event.

Tamsin Roe Fictional Counsel for Open Grid Archive